

Officer Nolan Rusk's Answer to Amended Complaint

Officer Nolan Rusk answers Mara Ellison's May 12, 2025 amended complaint in simulated Civil Action No. SYN-WDVA-25-CV-0733. He acknowledges that the amended pleading removes the City of Alder Creek and Chief Samuel Orton, leaving one individual-capacity claim under 42 U.S.C. § 1983. He denies using constitutionally excessive force and asserts qualified immunity.

Rusk admits that he was an Alder Creek Police Department officer, responded to a welfare call on February 3, wore an operating body camera, restrained Ellison, applied one drive-stun cycle, and helped complete handcuffing. He admits acting under color of law and does not contest federal jurisdiction or venue for this claim. He admits the seizure began when he grasped and restrained Ellison's left wrist at approximately 19:53:02. He understands that Ellison does not challenge the initial seizure's lawfulness.

Rusk denies that the force decision occurred in the absence of an immediate safety concern. He states that Ellison actively twisted, struck his forearm, and reached toward the equipment area of his duty belt during close contact. He admits the recordings do not visibly resolve those movements and that Ellison denies them. His answer states his account; it is not a judicial finding.

Unless specifically admitted, each allegation is denied.

Call, dispatch, and initial observations

Rusk admits Iris Ellison requested a welfare check at 19:42:11 and reported a medication or mental-health concern. He admits she reported no known weapon. He admits Dispatcher Lena Cho assigned him and Officer Priya Vega at 19:47:36 and that the event was not dispatched as a crime in progress. He denies that dispatch information could conclusively determine safety conditions officers would encounter.

Rusk admits reaching Larkspur Court Apartments at 19:52:14 and encountering Ellison in the exterior breezeway at approximately 19:52:48. He admits she was seated and that her empty hands were initially visible. He denies that she remained consistently calm or fully responsive. He states that she appeared distressed, shifted her attention, objected to contact, and did not follow directions he believed were necessary to prevent an abrupt departure or self-harm.

Rusk admits the welfare purpose and lack of suspected crime are relevant circumstances. He denies that those circumstances prohibited reasonable restraint. He states that mental-health calls may require patient communication and de-escalation, but officers must adapt if physical behavior changes. He denies approaching with a punitive purpose or deciding in advance to use electronic force.

Rusk lacks knowledge sufficient to admit Ellison's medication status, private conversations with Iris, or subjective intent and therefore denies characterizations beyond the records and his own observations.

Physical restraint and factual dispute

Rusk admits taking Ellison's left wrist at about 19:53:02. He states that he used a control hold after verbal efforts did not secure cooperation. He admits the hold physically limited her freedom and thus began the seizure. He denies that the hold was designed to inflict pain or that it applied more pressure than he believed necessary at its outset.

Rusk states that Ellison pulled, rotated her upper body, and increased the physical struggle. He further states that she struck his forearm and directed a hand toward the equipment side of his duty belt. He perceived the combination as an immediate risk that she could access a weapon or control device. Ellison denies each of those assertions and describes her movement as recoil from a painful grip. Rusk admits those competing descriptions present a factual dispute.

The camera view became blocked at approximately 19:53:08. Rusk admits the obstruction hides the location of Ellison's hands during material seconds. He admits Vega did not reliably see the hands from her separate position. He also admits that his statement "stop pulling," Ellison's response "you're hurting me," later commands, a cry, and movement noise do not by themselves show every physical act.

Rusk denies that evidentiary uncertainty is the equivalent of an admission. He will rely on admissible testimony and surrounding evidence while recognizing the standard applicable to any pretrial motion.

Conducted-energy use and completion of restraint

Rusk admits pressing the conducted-energy weapon against Ellison and activating one drive-stun cycle from approximately 19:53:16 until 19:53:21. He states that he did so in response to the forearm strike, equipment reach, and active twisting he perceived. He denies activating the device merely because Ellison questioned him, experienced distress, or failed to comply instantly.

Rusk admits the cycle occurred as he directed Ellison to the floor. He denies deploying probes, administering another cycle, or applying energy after the relevant movement stopped. When the camera view cleared near 19:53:22, Ellison was down and Vega approached to control her hands. The officers completed handcuffing at approximately 19:53:37. Rusk then stopped using force and requested or accepted medical evaluation.

Rusk denies that communication or waiting was a safe and feasible substitute at the moment he perceived a reach toward accessible equipment. He admits that if Ellison's account were assumed—no strike, no reach, no flight, no threat, and only pain-driven pulling—the legal analysis would involve materially different circumstances. He does not admit that her account is historically correct.

The recording does not blatantly contradict either account. Rusk therefore does not ask that hidden movements be treated as visible. He maintains that testimony can support his version and that a factfinder may evaluate credibility if the claim proceeds.

Injury and causation responses

Rusk admits Ellison had a left-wrist abrasion, two superficial contact burns, and symptoms diagnosed as a shoulder strain. He admits she reported pain and received evaluation from Paramedic Mateo Cole and Alder Creek Regional Medical Center. He admits imaging found no fracture and that no second electronic cycle occurred. He denies causing any injury beyond the effects that admissible medical proof attributes to the restraint and single cycle.

Rusk denies that the degree of injury alone determines reasonableness. He likewise denies that the lack of fracture makes all force lawful. He requests that the force and damages questions remain analytically distinct: the first concerns objective circumstances at the moment of action; the second concerns injury, causation, duration, mitigation, and legally recoverable loss.

Rusk admits Ellison was not criminally charged from the encounter. He denies that a later decision not to charge resolves whether she struck his arm or reached toward his belt. The dispatch and care objectives remained protective, and transport was medical rather than custodial booking.

Rusk lacks knowledge sufficient to admit the full course of Ellison's outpatient symptoms, emotional distress, or expenses. He therefore denies those allegations pending proof. He denies acting with malice or a purpose to punish. He states that his sole purpose in applying the cycle was to neutralize a danger he perceived during close physical contact.

Merits defense and qualified immunity

Rusk denies violating the Fourth Amendment. On his factual account, Ellison escalated from pulling to a forearm strike and an equipment reach during a confined struggle. A single five-second drive-stun cycle ended when she was brought down, after which no further electronic force was used. Rusk contends a reasonable officer could select that limited application to address an immediate threat and gain control.

Rusk separately asserts qualified immunity. He contends that, under his asserted facts, existing precedent did not place beyond debate that one close-contact cycle was forbidden when a person struck an officer and reached toward duty equipment. He preserves that legal defense even if a jury could later disagree with some aspect of his force judgment.

Rusk recognizes that an interlocutory court reviewing denial of immunity may lack authority to decide whether Ellison supplied enough evidence for her version. To the extent review is available, he contends the court may ask whether Ellison's assumed version establishes a violation of clearly established law. He does not concede the result of that legal inquiry and does not ask the answer to classify appellate jurisdiction.

Rusk denies punitive-damages prerequisites. He also preserves causation, mitigation, setoff, and evidentiary defenses to damages insofar as supported by the developed record. No defense should be read to blame Ellison merely for having a mental-health crisis.

Other defenses and scope limitations

Rusk preserves the right to seek judgment under the governing civil rules after discovery and pleads no counterclaim. He accepts that the City and Chief are no longer parties. He asserts that each item must be used for its proper purpose: the emergency call shows information conveyed, a camera transcript records audible content rather than hidden hands, and a treatment history is not eyewitness reconstruction. Expert analysis may address visibility or practices but may not invent pixels or decide credibility.

If the case proceeds to trial, Rusk requests instructions separating the unchallenged initiation of restraint from the disputed drive-stun force. He also asks that no adverse inference arise merely because ordinary close contact blocked a chest camera. Rusk requests judgment in his favor, denial of punitive and unsupported damages, permitted costs, and appropriate further relief. He demands a jury on triable facts while reserving legal questions for the Court.

This answer preserves two positions. For factfinding, Rusk maintains that Ellison struck his forearm and reached toward his belt. In a posture requiring plaintiff-favorable assumptions, he recognizes that a court may temporarily assume no strike, reach, flight, threat, or immediate danger and only nonthreatening pulling. That procedural assumption is not a historical concession.

Fictional counsel certifies electronic service on May 27, 2025 within the simulated docket. All local institutions, people, and events are inventions. Real legal references remain distinct from fabricated evidence. The signature represents no submission to an actual court or police agency.